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Community Participation In Improving Environmental Protection and Effort Management

E Sulistyaningsih*

Department of Law, Janabadra University, Indonesia, 55231

Email: sulistyaningsihendang68@gmail.com

Abstract. The aims of this study to examine and elaborate community participation in anticipating and tackling pollution and environmental damage, thereby creating a healthy and sustainable life. Environmental issues are essential to ensure and make the earth and the natural surroundings a livable space for a peaceful and prosperous life. The actions that pollute the environment are tantamount to killing life. Environmental mismanagement can at least be caused by various factors such as education level, economic problems, lifestyle, weakness of the legislative system, and weak supervision of environmental management, causing pollution and damage to the environment. A normative legal method was used to conduct qualitative research. Data were gathered from various sources, including literature, books, laws and regulations, legal theory, and legal expert opinions, with a focus on environmental management and preservation in Indonesia. The results show,the public's awareness of the environment is limited due to the general public's ignorance of environmental aspects and not knowing the consequences of polluting and destroying the environment. For this reason, efforts are needed, such as counseling, guidance, role models, and community involvement in tackling environmental problems. Increasing law enforcement activities with an educative-persuasive and preventive dimension needs to be improved and encouraged again. Government performance is also essential to create public participation or awareness of the importance of their environmental functions by working together to clean and maintain.

1. Introduction

The declining level of biodiversity and the destruction of ecosystem functions cause severe problems and threats to human life [1]. Several human activities put pressure on the environment, there is the potential for environmental degradation and damage to ecosystem functions, both on land and at sea, resulting in enormous life losses [2]. Illegal and indiscriminate logging activities and not paying attention to applicable regulations result in land damage, reduced biodiversity, decreased ecosystem functions, changing climate patterns, depletion of the ozone layer, greenhouse effect, global warming, landslides, and floods [3]. This phenomenon causes a high level of threat to natural resources so that environmental resilience can decrease. Human actions and activities influence changes that occur in the environment and its surroundings, such as development. Considering the environment is very vulnerable to pressures and changes that occur naturally and physically, the quality of the environment decreases [4].

Environmental protection is a term used to describe the various forms of life on the earth's surface, the interactions between living things and their environment. The interaction will refer to all aspects of life, economy, society, environment, knowledge, ethics, and the relationship of one part to another. Globally, this is a very important issue around the world. According to the United Nations, 2.6 billion people depend on the land, with 52% of the land used for agriculture [5]. Annually, about 12 million

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hectares and 23 hectares per minute of land are lost, and 30/50 times more soil fertility is lost due to desertification or land clearing and drought. At the same time, 80% of human food is obtained from plants[6]. As many as 7,000 species of animals and plants are listed on the illegal trade list from 120 countries through illegal hunting and wildlife trade. Approximately 3/4 of the earth's surface area, which is about 3 billion people, depends on biodiversity, both in the oceans, seas, and coasts, for their livelihoods. The oceans absorb about 30% of the carbon dioxide produced by human activities[7].

Currently, the Indonesian government is implementing development in various regions that harm the sustainability of nature [8]. As a result, there is an imbalance of ecosystems that causes environmental damage, therefore a regulation is needed to implement environmental-based development. Environmental protection and management is an integrated effort to preserve environmental functions, including structuring, utilizing, developing, maintaining, restoring supervision, and controlling the environment[9]. Based on Law Number 32 of 2009 concerning Environmental Protection and Management (UU-PPLH), environmental protection and management is a systematic and integrated effort to preserve ecological functions, including planning, utilization, control, maintenance, supervision, and law enforcement. Efforts to protect and manage the environment are the obligations of the state, government, and all interests in implementing sustainable development so that the Indonesian environment can remain a source and support of life for the Indonesian people and other living creatures[10]. Environmental management provides economic, social, and cultural benefits. It is based on environmental democracy, decentralization, recognition, and respect for local wisdom and environmental wisdom[11]. The Indonesian environment must be protected and appropriately managed based on state responsibility, sustainability, and justice[12].

To realize the goal of sustainable development, one of the ways provided by law number 32 of 2009 in article 70 is to optimize community participation in environmental protection and management. This article outlines several roles that can be performed by the community, including social supervision, providing suggestions for opinions, suggestions, objections, complaints and submitting information and/or reports[13] . Thus, normatively UUPPLH is has adopted Principle 10 of the 1992 Rio Declaration which emphasizes the importance of community participation in environmental protection and management. In all spheres of life, performance and community participation are needed in environmental management in their place of residence. Because the community also has the right and responsibility to participate in the preservation and management of the environment in accordance with the Law (UU No. 32 of 2009 article (4)).

The aims of this study to examine and elaborate community participation in anticipating and tackling pollution and environmental damage, thereby creating a healthy and sustainable life. This research is a normative legal research, namely research conducted to analyze secondary data from books, laws and regulations, legal theory, and legal expert opinions, especially regarding environmental management and protection in Indonesia. Various hypotheses in this study emerged as a form of qualitative descriptive research. Environmental management and protection are still deficient due to the lack of public awareness of environmental protection and management, high rates of littering, land use transfer, drainage, river flows, urban parks, protected forests, and coastal abrasion [14]. The public's legal awareness of the environment is limited due to the general public's ignorance of environmental aspects and not knowing the consequences of polluting and damaging the environment. Furthermore, law enforcement, sanctions, weak regulations are the main problems in increasing public awareness in managing and protecting the environment. The role and performance of the government are also very much needed in preserving the environment; it takes aspects of socialization, counseling, guidance to the community in tackling environmental problems. By looking at these conditions, solid and intense collaboration is needed from the government, environmental managers, non-government organizations, and the community in strengthening environmental management and protection.

2. Discussion

One of the principles of Good Governance is community participation. Community participation is defined as a process that involves the general public in decision-making, formulation, implementation,

and supervision of policies in governance, development, and community development [15]. Community participation can be defined as a way of interacting between groups that have not been included in the decision-making process (non-elite) and groups that have made decisions (elite) [16]. Many view community participation as the delivery of information (public information), counseling, even just as a means of public relations so that these activities can run without obstacles[17]. Therefore, community participation is not only used as a means to an end but is also used as an end (participation is an end in itself). Koesnadi Hardjasoemantri also expressed the need for community participation that, in addition to providing valuable information for decision-makers, community participation will reduce the possibility of people's willingness to accept decisions. Furthermore, community participation will help protect the law [18].

In the 1945 Constitution of the Republic of Indonesia and its amendments as the constitutional basis, it is obligatory that natural resources be used for the greatest prosperity of the people, as stated in Article 33 paragraph (3) of the 1945 Constitution that the Earth and water and The natural wealth contained therein is controlled by the state and used for the greatest prosperity of the people. Along with the need for development to improve welfare and overcome many problems, experience shows that development can and has resulted in various negative impacts. The concept of unsustainable and unsustainable development will not only exacerbate existing environmental and social problems but will also trigger new environmental problems[19], including problems of forest and land damage, coastal and marine damage, water and soil pollution. and air, urban and social environmental problems[20].

Koesnadi Hardjasoemantri took the opinion of Moenadjat, that environmental law is Modern Environmental Law establishing provisions and norms to regulate human actions with the aim of protecting the environment from damage and deterioration of its quality, in order to ensure its sustainability so that it can be used by present and future generations [21]. Prevention must be carried out as early as possible against acts that will intentionally or not cause environmental damage [22]. This is especially true for actions that are motivated by business activities, including those engaged in forestry, mining, and companies that have waste. These business people must be able to take into account the risk of environmental damage and have definite steps prepared to deal with it both preventively and repressively. Community participation is very important in environmental management administrative procedures, such as licensing, environmental impact analysis and so on.

One of the objectives of environmental protection and management as contained in Article 3 of Law Number 32 of 2009 concerning Environmental Protection and Management, hereinafter abbreviated as UUPPLH, is to guarantee the fulfillment and protection of the right to the environment as part of human rights. There are eight rights recognized in UUPPLH, namely: (1) the right to a good and healthy environment as a human right, (2) the right to environmental education, (3) the right to access information, (4) the right to access participation, (5) the right to submit proposals or objections to the planned business and or activity that is expected to have an impact on the environment, (6) the right to play a role in environmental protection and management, (7) the right to file a complaint due to allegations of environmental pollution and or damage , and (8) the right not to be criminally and civilly prosecuted in fighting for the right to a good and healthy environment.

John Stuart Mill (1963) argues that participation at the local level, where real education of participation occurs, one will “learn democracy”. He noted that people do not learn to read or write with words alone, but by doing them. So only by continuing to practice governance on a small scale will people learn how to practice it on a larger scale. Appropriateness and obedience to legal provisions (environment), is an indicator of public legal awareness. Community participation, according to the environmental management law, is the main component, in addition to the existence of law enforcement, to achieve legal goals through law enforcement facilities, by enforcing environmental laws. Lothar Gundling, as referred to by Koesnadi Hardjasoemantri, has stated several benefits of community participation in environmental management, namely: providing information to the government, increasing people's willingness to accept government decisions, preventing lawsuits from being filed by the community and democratizing decision making [21].

Likewise, community participation is very important in environmental management administrative procedures, such as licensing, environmental impact analysis and so on. Licensing is one of the juridical instruments in environmental administrative law. Put forward by Van Wijk and Konijnenbelt related to the function of administrative law, in their book "*Hoofdstukken van Administratief*" namely: *"Administratief recht, bestuurecht-het heft alles te maken met administratie, speak, het bestuuren. Global gezegd : het is het juridische instrumentarium voor de overhead die zich actief bemoeit met de samenleving; e naan de andere kant het recht dat de leden van de samenleving invloed op en besvherming tegen dizelfde, zich met het en hun omgeving bemoeiende overhead moet geven. Dat is nog maar een zeer voorlopige en oppevlakkige aanduiding*". This means that administrative law, governance law, all of which involve administratie, beestur, besturen. In general, it can be said that administrative law is a juridical instrument for the ruler to be actively involved with the community and on the other hand administrative law is a law that allows members of the community to influence the ruler and provide protection for the ruler.

Administrative law enforcement is part of the scope of administrative law, where administrative law enforcement is a means of administrative law owned by the government to achieve compliance[23], so that administrative law enforcement has 2 (two) properties, namely preventive and repressive [18]. Preventive nature is prevention to prevent violations of laws and regulations or environmental licensing provisions[24]. This preventive action is carried out through coaching and supervision. Whereas what is meant by repressive nature is the act of applying administrative sanctions to violations of laws and regulations or environmental licensing provisions [18]. In essence, the application of administrative sanctions include : prevent and/or stop violations; Protecting environmental and community functions from damage and/or pollution as a result of a business and/or activity; minimize or reduce the risk, danger, loss and/or victim due to pollution and/or damage so that efforts must be made to stop the business and/or activity; create a deterrent effect on businesses and/or activities that violate laws and regulations in the environmental sector and/or environmental licensing provisions.

Hardjasoemantri sees the need to fulfill the following conditions so that community participation becomes effective and efficient [21]: ensuring the receipt of information by requiring the initiator of the activity to announce its plan of activity; trans-border information (transfortier information); considering that environmental problems do not recognize man-made boundaries, there is a possibility that environmental damage in one area will also affect neighboring provinces or countries. So the exchange of information and supervision involving the relevant regions is important; timely information (timely information); an effective community participation process requires information as early and as accurate as possible, before the final decision is made. Thus, there is still an opportunity to consider and propose alternatives; complete and comprehensive information; although the content of the information will vary depending on the needs of the planned activity, but in essence the information must describe the activity plan in detail including other alternatives that can be taken.

2.1. Efforts to Increase Community Participation

In Law Number 32 of 2009 concerning Environmental Protection and Management Article 70 Paragraph (1) it is stated that "The community has the same and widest possible rights and opportunities to play an active role in environmental protection and management". In Article 70 paragraph (2) the role of the community in environmental protection and management can be in the form of: social surveillance; giving suggestions, opinions, proposals, objections, complaints; submission of information and/or reports. Meanwhile, Article 70 paragraph (3) states that the role of the community is carried out to: increase awareness in environmental protection and management; increasing independence, community empowerment, and partnerships; growing community capacity and pioneering; develop community responsiveness to carry out social supervision; develop and maintain local culture and wisdom in the context of preserving environmental functions.

Regarding the role of the community in the Protection and Management of the Environment according to Law Number 32 of 2009, there are some examples to do such as; Don't leave cigarette butts, even they're just tiny embers, cigarette butts can be one of the causes of forest fires, especially

during the dry season, do not throw away inorganic waste: plastic, styrofoam, cans, batteries, etc.; do not destroy the environment, pollute forests, water, and air. Environmental management, including prevention, prevention of damage and pollution, and restoration of environmental quality, has demanded the development of various policies, programs, and activities supported by other environmental management support systems[25]. The system includes institutional stability, human resource, and environmental partnerships. The nature of interdependence and wholeness (holistic) of the essence of the environment has brought the consequence that environmental management, including its support system, cannot stand alone, cooperate, and be integrated with its implementation [26].

Increasing community participation in environmental protection and preservation can be accomplished both individually and in groups comprised of members of various organizations. The organization was founded as an essential component of the community's involvement in maintaining a good and healthy environment. Several measures can be made to improve community participation, including: (1) Develop an understanding and appreciation of environmental awareness through formal and non-formal education [27]; (2) Invite community groups to participate in environmental development movements, such as: religious leaders, starting from the idea that the preservation and use of god-given natural resources is part of religious teachings; women, based on the observation that women are the majority group (51%) of the total population of Indonesia and are involved daily in the household, residential and social environment[27]; youth, as the generation that inherits the environment and natural resources in the future, is most concerned with the preservation of natural resources [28]. At the same time, youth involvement in environmental development is also an element of education outside of school to foster love for the homeland and the spirit of patriotism; journalists and other commentators to be able to become messengers, movers and motivators as well as an attitude to live with the values of environmental conservation in society; other community organizations engaged in the environment and voluntarily involve themselves in environmental development [29].

3. Conclusion

Essentially, everyone is a community member with rights, obligations, and tasks in environmental management. Environmental management can be practiced anywhere in Indonesia. Furthermore, the community's role in generating the environment is inextricably linked to the need to protect the environment itself. The community's participation in environmental management and protection may be seen in Law No. 32 of 2009, which describes how the community provides social supervision in environmental protection; contributes suggestions, comments, and reports to improve environmental management and protection. The community's participation can be expanded by empowering and collaborating, developing capacities and pioneers, developing community responsiveness to carry out social supervision, and developing and sustaining local culture and wisdom in the context of conserving environmental functions.

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